

Shri Nath Prajapati v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 9 January 2020 · Writ-C No. 419 of 2020 · **Writ disposed; speaking order on pending objection; recovery stayed; s.127 preserved.**

HEADNOTE

Where a consumer's objection to a recovery certificate was still pending before the Executive Engineer, the High Court declined to quash the demand on merits. It directed the petitioner to appear with the objection and evidence, required a speaking and reasoned final order within four weeks, stayed coercive action for five weeks or until disposal of the objection, whichever was earlier, and left open an appeal under Section 127 of the Electricity Act, 2003 if the consumer remained aggrieved. Non-appearance on the date fixed would automatically revive the demand.

FACTUAL SUMMARY

Shri Nath Prajapati filed a writ in the Allahabad High Court seeking certiorari to quash a recovery certificate dated 14 October 2019 issued by the Executive Engineer. He alleged that the electricity department was taking coercive recovery steps without deciding his pending objection and without following the U.P. Electricity Supply Code, 2005. Standing counsel stated that the objection was already listed before the Executive Engineer on 13 January 2020. The Court proceeded on that undisputed listing.

HOLDING-UNITS

HOLDING-UNIT · EA2003::127

relegation to section 127 after speaking order

HOLDING

A writ challenging a recovery certificate, where the consumer's objection remains pending before the Executive Engineer, is not decided on merits. The consumer is directed to appear with the objection and evidence; a speaking and reasoned final order is to follow; coercive recovery is stayed pending that disposal; and if the consumer is aggrieved by the final order, the remedy is an appeal under Section 127 of the Electricity Act, 2003. Failure to appear on the date fixed revives the demand automatically. ¶ 1

PRINCIPLE TAGS

alternative-remedy-relegation-section-127

The Court did not quash or uphold the recovery certificate. After directing a speaking final order on the pending objection, it left the consumer, if still aggrieved, to the statutory appeal under Section 127 of the Electricity Act, 2003. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 14 OCTOBER 2019

Neither quashed nor affirmed; left to a speaking final order on the pending objection. ¶ 1

NOT DECIDED — WHETHER THE DEPARTMENT HAD FAILED TO FOLLOW THE U.P. ELECTRICITY SUPPLY CODE, 2005

¶ 1